THE STATE

Versus

FREDDY ZIMOMBE

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J with Assessors Mrs. M. Chademana and Mr. S. Mutomba
MASVINGO 17 March 2026

Criminal trial

E. Mbavarira, for the State
T. Chikwati, for the accused

DUBE-BANDA J:

[1] The accused is appearing before this court charged with the crime of murder as defined in s 47(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code"). The allegations being that on 16 May 2025 at Chevhu Business Centre, Chief Nhema, Zaka, the accused unlawfully caused the death of Esther Dhokotera ("the deceased") a female adult by assaulting her several times all over the body using switches and booted feet intending to kill him or realising that his conduct may cause death, and continued to engage in that conduct despite the risk or possibility.

[2] The accused person pleaded not guilty to the crime of murder, offering a plea of guilty to the lesser crime of culpable homicide. The State accepted the plea of guilty to culpable homicide. The prosecutor tendered into the record a statement of agreed facts, which is before this court as Annexure A. The statement of agreed facts reads as follows:

i. Accused is a male aged 54 years old and residing at Village Shenjere, Chief Nhema, Zaka.
ii. Deceased was a female adult aged 43 years old. She was accused's wife. On the 16th day of May 2025, accused and deceased were drinking beer together at Muchebve shop, Chevhu Business Centre, Zaka. At around midnight deceased, who was drunk, started urinating in the shop in front of accused and other beer patrons.
iii. Accused reacted by dragging deceased outside the shop. Whilst outside the shop, accused started assaulting deceased all over the body using switches and booted feet until deceased died from the injuries sustained in the assault. Accused left deceased near the road and went home.

iv. Deceased's remains were ferried to Masvingo Provincial Hospital for postmortem examination. The examination was conducted by Doctor Godfrey Zimbwa who concluded that death was caused by head injury, neck fracture and assault.

v. The death of deceased was a direct result of the assault by the accused person. Accused admits that he was negligent in the manner he assaulted deceased. From the circumstances of this case and the manner of assault the State and Defence agree that accused was negligent and did not have had the intention to cause deceased's death.

WHEREFORE Both the State and the Defence pray that the accused person be found not guilty and acquitted on the charge of murder and that he be found guilty of Culpable Homicide as defined in Section 49 of the Criminal Law (Codification and Reform) Act [Chapter 9:23).

[3] The prosecutor, with the consent of the accused, produced the following exhibits: eleven broken switches; a certificate of weight of the switches; and a postmortem report. The post-mortem report was compiled by Dr. Zimbwa, who concluded that the cause of death was head injury, neck fracture, and assault.

[4] The totality of the facts and the evidence adduced in this trial shows that the injuries sustained by the deceased were caused by the accused. The post-mortem report shows that the injuries inflicted by the accused caused the death of the deceased.

[5] In assaulting the deceased in the manner he did, the accused fell below the reasonable person standard. The accused ought, as a reasonable man, to have foreseen the death of the deceased and guarded against it. The accused was negligent, and it was his negligence that caused the death of the deceased. Based on these facts and the evidence of this case, the court is satisfied that the accused had no intention, direct or constructive, to cause the death of the deceased. It is in this regard that the court accepts that the State's concession was properly taken.

[6] In the result: the accused is found not guilty of murder and found guilty of the lesser crime of culpable homicide as defined in s49 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*].

Sentence

[7] The accused stands before this court convicted of the crime of culpable homicide as defined in s49 of the Criminal Law Code. In determining an appropriate sentence, this court must consider the applicable sentencing principles and juxtapose the principles with the circumstances of the case. A consideration of the well-known triad of sentence consisting of the crime, the offender, and the interests of society is necessary. See *S* v *Zinn* 1969 (2) SA 537

(A). The court will factor into the sentencing equation the provisions of the Criminal Procedure (Sentencing Guidelines) Regulations, 2023.

[8] It is trite that in passing sentence, the personal circumstances of the offender must be considered carefully. The offender is 54 years old. He has 4 children who are all minors. The deceased was the mother of the accused's 4 children. He is the breadwinner of his family and survives on piece jobs at sugarcane farms, earning US$100 per month. He has been married to the deceased for seventeen years. Counsel for the accused submitted that before this occasion, there was no history of violence between the offender and the deceased. In addition, it was submitted that the offender was infuriated by the conduct of his wife, the deceased, and reacted by assaulting her. It was submitted that he was intoxicated and thus failed to realise that he had gone beyond the limit. It was submitted that the fracture on the neck may have occurred when the offender was dragging the deceased, trying to take her home. He was charged twenty-four beats by the family of the deceased; however, he has so far availed two beasts and two goats as compensation. The court was urged to factor into the sentencing equation that he is a first offender, he pleaded guilty, thus showing remorse. It was submitted that the stigma of killing his wife will haunt him for the rest of his life. The personal circumstances of the offender are important in the sentencing equation.

[9] In aggravation, the prosecutor submitted that the accused stands convicted of a serious offence of culpable homicide arising from violent conduct. He viciously assaulted the deceased several times until she died. It was argued that cases of this nature are on the rise and a deterrent sentence is called for. In addition, counsel argued that the court must consider that the offender's blameworthiness is very high. Counsel further placed on record the Victim Impact Statement given by the deceased's father. The statement shows the devastating impact of the death of the deceased on her family. The aggravating circumstances must be allocated their proper place in sentencing and be juxtaposed with mitigating factors.

[10] It is recorded that punishment must fit the criminal as well as the crime, be fair to society, and be blended with a measure of mercy according to the circumstances. This court has a duty to impose an appropriate sentence. See *S* v *Kumalo* 1973 (3) SA 697 (A) at 698. When determining an appropriate sentence, there is, as was pointed out in *S* v *Rabie* 1975 (4) SA 855 (A) at 861B, a duty on the court to approach the determination with a mindset of mercy or compassion or plain humanity. This has nothing in common with maudlin sympathy for the accused. While recognising that fair punishment may sometimes have to be robust, mercy is a

balanced and humane quality of thought which tempers one's approach when considering the basic factors of letting the punishment fit the criminal as well as the crime and being fair to society.

[11] Femicide and gender-based violence remain a scourge that continues to ravage our country to its core. This case exemplifies the gravity and depth of this unrelenting problem. The deceased died a painful death. The degree of violence exerted upon the deceased is deplorable. Femicide remains a serious threat and needs to be dealt with decisively in a manner proportionate to the magnitude of the problem it represents. The deceased was an adult, a mother, and no matter what she had done, the offender had no right to chastise her like her child. He took it upon himself to assault her with switches until she died. He was kicking her with booted feet. This is what must have fractured her neck. The postmortem report shows that the whole body had whip lash marks. She had scalp and facial bruises, and her neck was broken. This is, in fact, a borderline murder and culpable homicide case. The offender's moral blameworthiness is very high. This is a case where fairness demands that punishment be robust. In *The State* v *Vurande* HMA09-26, the court said:

> "Although it is correct that an offender should not be sacrificed on the altar of deterrence, it becomes necessary from time to time for the courts to send a strong message to society and would-be offenders to curb the proliferation of crimes. Femicide and gender-based violence remain a scourge that continues to ravage our country to its core. This case exemplifies the gravity and depth of this unrelenting problem. The courts must rise to the occasion and arrest this ugly tide. Women must be safe in the company of their husbands, in the company of their boyfriends, and even in the company of their sons. Not to have their lives ended in a brutal manner by those who should be their protectors. The courts must respond and do so appropriately to this wanton violence against women. The sentences must reflect that the killing of women will not be tolerated".

[12] The sentiments in the *Vurande c*ase apply with equal force in this matter. In terms of the sentencing guidelines, the presumptive penalty is 5 years' imprisonment. This is a case where the court must depart from a prescribed presumptive penalty. The reasons stated above justify such a departure. The degree of negligence is very high. The offender subjected the deceased to cruel and inhuman treatment. The assault was vicious, prolonged, and sustained. After assaulting her in such a vicious manner, he left her on the side of the road and went home to sleep. This conduct is aggravating. The sentences for the killing of women must reflect the revulsion for these kinds of crimes. The aggravating factors of this case cast a dark shadow

over the mitigating factors. It is for these reasons that the following sentence will meet the justice of this case.

[13] In the result, the accused is sentenced to 8 years imprisonment, of which 2 years imprisonment is suspended for 5 years on condition the accused does not within that period commit an offence of which an assault or physical violence on the person of another is an element and for which upon conviction he is sentenced to a term of imprisonment without the option of a fine.

National Prosecuting Authority, state's legal practitioners
Matutu and Mureri Legal Practitioners, accused's, legal practitioners